



CHAPTER xxviii

An Act to empower the Commissioners of Warkworth Harbour to borrow additional moneys to make further provision with respect to the rates tolls and dues leviable by the Commissioners and for other purposes. [14th July 1953.]

WHEREAS—

(1) The Commissioners of Warkworth Harbour (in this Act referred to as “the Commissioners”) were appointed by the Warkworth Harbour Act 1847 and under the powers conferred upon them by the Warkworth Harbour Acts 1847 to 1936 are the authority for the conservation and improvement of Warkworth Harbour in the county of Northumberland and for the improvement of the navigation of such part of the river Coquet in the said county as lies between Warkworth Bridge and the sea:

(2) The Commissioners are authorised by the Warkworth Harbour Acts 1847 to 1936 to raise by borrowing on the security of the harbour revenue sums amounting to two hundred and twenty thousand pounds and have raised the sum of two hundred and twelve thousand seven hundred and twenty-eight pounds of which there remains owing the sum of twenty-eight thousand five hundred pounds:

(3) It is expedient that the time for the repayment of the said sum of twenty-eight thousand five hundred pounds should be extended to the twenty-ninth day of June nineteen hundred and eighty-three:

(4) It is expedient that the Commissioners be authorised to borrow additional moneys for the purpose of the improvement of Warkworth Harbour and for the purposes of their undertaking:

(5) In order to enable the Commissioners to continue efficiently to carry on their undertaking and to give permanent effect to and to amend the provisions of the Warkworth Harbour (Increase of Charges) Order 1941 made by the Minister of Transport under regulation 56 of the Defence (General) Regulations 1939 (Statutory Rules and Orders 1941 No. 1342) it is expedient to empower the Commissioners to levy rates tolls and dues as provided in this Act:

(6) It is expedient that the other provisions of this Act should be enacted:

(7) The objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short and
collective
titles.

1.—(1) This Act may be cited as the Warkworth Harbour Act 1953.

(2) The Warkworth Harbour Acts 1847 to 1936 and this Act may be cited together as the Warkworth Harbour Acts 1847 to 1953.

Interpretation.

2.—(1) In this Act unless the subject or context otherwise requires the following expressions have the meanings hereby respectively assigned to them:—

“authorised rates” means the rates tolls and dues which the Commissioners are from time to time authorised to levy demand and receive in pursuance of the Warkworth Harbour Acts 1847 to 1953 or any order made under section 6 (Revision of rates) of this Act;

“Commissioners” means the Commissioners of Warkworth Harbour;

“harbour” means Warkworth Harbour in the county of Northumberland as authorised by the Warkworth Harbour Act 1847 and the land buildings works plant property and conveniences connected therewith or any part thereof as the case may be;

“harbour revenue” means and includes all rates tolls dues rents charges and moneys not being capital moneys leviable by or payable to the Commissioners;

“ Minister ” means the Minister of Transport ;

“ undertaking ” means the undertaking of the Commissioners in connection with the harbour and the river Coquet in the county of Northumberland as from time to time authorised ;

“ vessel ” includes a ship boat lighter barge and any other craft.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

3. Section 8 (As to the repayment of borrowed moneys) of the Warkworth Harbour Act 1893 shall be read and have effect as if for the words “ sixty years ” there were substituted the words “ ninety years ”.

Amendment of section 8 of Warkworth Harbour Act 1893.

4. Section 7 (Power to borrow) of the Warkworth Harbour Act 1893 as amended by section 6 (Amendment of section 7 of Act of 1893) of the Warkworth Harbour Act 1936 shall be read and have effect as if for the words “ fifty thousand ” there were substituted the words “ one hundred and fifty thousand ”.

Further amendment of section 7 of Warkworth Harbour Act 1893.

5.—(1) The provisions of this section shall come into force on the first day of October nineteen hundred and fifty-three.

Increase of rates tolls and dues.

(2) As from the coming into force of this section the Warkworth Harbour Act 1847 shall be read and have effect as if the schedule to this Act had been substituted for the First Schedule to that Act and on and from the coming into force of this section the First Schedule to that Act shall be repealed.

(3) Notwithstanding the provisions of section 32 (Rates on goods) of and the Second Schedule to the Warkworth Harbour Act 1847 as amended by section 3 (Rates tolls and dues) of the Warkworth Harbour Act 1936 the Commissioners may levy demand and receive for all coals exported from the harbour or the improved parts of the river Coquet rates and dues not exceeding one shilling per ton.

(4) If the total amount of any rates tolls or dues leviable upon any vessel at any one time in pursuance of the Warkworth Harbour Acts 1847 to 1953 or leviable for coals in pursuance of this section includes a fraction of a penny the fraction if less than one halfpenny shall not be charged and if equal to or more than one halfpenny shall be charged as a penny.

(5) All references in any unrepealed provisions of the Warkworth Harbour Acts 1847 to 1936 to the rates tolls and dues which the Commissioners are entitled to demand and receive shall

(so far as applicable and not inconsistent with this Act) be construed as including a reference to the rates tolls and dues which the Commissioners are from time to time authorised to levy in pursuance of this section or of an order of the Minister made under section 6 (Revision of rates) of this Act.

(6) The Warkworth Harbour (Increase of Charges) Order 1941 shall be revoked as from the coming into force of this section.

Revision
of rates.

6.—(1) If it is represented by application in writing to the Minister—

- (a) by any chamber of commerce or shipping or any representative body of traders or shipowners ; or
- (b) by any person who in the opinion of the Minister has a substantial interest in the trade of the harbour and is a proper person to make an application ; or
- (c) by the Commissioners ;

that under the circumstances then existing the authorised rates should be revised in whole or in part the Minister if he thinks fit may make an order revising all or any of the authorised rates referred to in the application and may fix the date as from which such order shall take effect and thenceforth such order shall remain in force until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this subsection.

(2) An application made to the Minister under subsection (1) of this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require.

(3) Where upon an application under subsection (1) of this section an order has been made or the Minister has decided not to make an order no further application for a revision of any of the rates to which the application related shall be made within twelve months from the date of such order or decision as the case may be.

(4) Before making an order under subsection (1) of this section the Minister shall consult with such bodies or persons as aforesaid as appear to him to be appropriate including the Commissioners where they are not the applicants and for the purpose of ascertaining such bodies or persons may require public notice of the application to be given and where an objection to an application is made by the Commissioners or by any such body or person as aforesaid and is not withdrawn the Minister unless it appears to him that the objection is of a trivial nature shall cause an inquiry to be held in reference to the application.

(5) Subject to the proviso to this subsection the Minister shall not by an order under subsection (1) of this section make any such revision of the authorised rates as in his opinion would

so far as can be estimated be likely to result in the annual revenue of the Commissioners being insufficient or more than sufficient to enable the Commissioners with efficient management of their undertaking to make adequate provision for paying all proper expenses of and connected with the working management and maintenance of the undertaking including interest on loan capital (regard being had by him to any capital which the Commissioners may reasonably be expected to expend) making good depreciation providing for any contributions which the Commissioners may reasonably and properly carry to any reserve fund or sinking fund and meeting all other costs charges and expenses (if any) properly chargeable to revenue :

Provided that in any case in which the Minister is satisfied that there are special circumstances affecting the undertaking taking into account the financial condition of the undertaking during such period preceding the date on which an application is made under subsection (1) of this section as the Minister considers to be appropriate the Minister may revise the authorised rates in such manner as he thinks just and reasonable with due allowance for such special circumstances notwithstanding that such revision is likely to result in the revenue of the Commissioners being insufficient to enable the Commissioners to make adequate provision for all of the matters referred to in the foregoing provisions of this subsection.

(6) Subsections (2) to (5) of section 290 of the Local Government Act 1933 shall apply to inquiries which the Minister may cause to be held under this section as if they were inquiries held in pursuance of subsection (1) of that section and the Commissioners were a local authority.

(7) The power of the Minister to make an order under this section shall be exercisable by statutory instrument.

(8) Section 5 (Revision of rates tolls and dues) of the Warkworth Harbour Act 1936 is hereby repealed.

7.—(1) The harbour revenue shall be applicable for providing for the purposes and in the order following :—

Application
of harbour
revenue.

(a) the payment of all or part of the costs of and connected with the preparation applying for obtaining and passing of this Act ;

(b) the payment of the expense properly chargeable to revenue of the maintenance repair renewal and management of the undertaking ;

(c) the payment year by year of the interest accruing on moneys borrowed under the Warkworth Harbour Acts 1847 to 1953 ; and

(d) the payment of the instalments as they become due in discharge of any moneys so borrowed and repayable by instalments or the forming of a sinking fund in accordance with the Warkworth Harbour Act 1893 for payment of principal moneys so borrowed.

(2) The surplus (if any) after providing for the purposes aforesaid shall be applied as the Commissioners think fit for the purpose of their undertaking and in no other way.

(3) Section 21 (Application of harbour revenue) of the Warkworth Harbour Act 1893 is hereby repealed.

Saving for
powers of
Treasury.

8. It shall not be lawful to exercise the power of borrowing conferred by the Warkworth Harbour Acts 1847 to 1953 (other than the powers of borrowing to pay the costs charges and expenses of this Act) otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Saving rights
of Duke of
Northum-
berland.

9. Nothing in this Act shall extend or be deemed or construed to extend to take away lessen prejudice alter or in any way affect section 43 (For protecting anchorage dues belonging to the Duke of Northumberland) and section 44 (Saving the rights of the Duke of Northumberland generally) of the Warkworth Harbour Act 1847 but such sections shall be and remain of as full force and effect as if this Act had not been passed.

Costs of Act.

10. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Commissioners out of revenue or out of moneys to be borrowed for the purpose.

SCHEDULE

	s.	d.
For every vessel sailing to or from the harbour from or to any port or place in the United Kingdom Eire the Isle of Man or the Channel Islands for every register ton	1	6
For every vessel sailing to or from the harbour from or to any port or place not in the United Kingdom Eire the Isle of Man or the Channel Islands for every register ton	2	3
For every vessel using the harbour as a harbour of refuge for every register ton	0	1½

Table of Statutes referred to in this Act

Short title	Session and chapter
Warkworth Harbour Act 1847	10 & 11 Vict. c. cxxviii.
Warkworth Harbour Act 1893	56 & 57 Vict. c. xciv.
Local Government Act 1933	23 & 24 Geo. 5 c. 51.
Warkworth Harbour Act 1936	26 Geo. 5 and 1 Edw. 8 c. xviii.
Borrowing (Control and Guarantees) Act 1946	9 & 10 Geo. 6 c. 58.

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